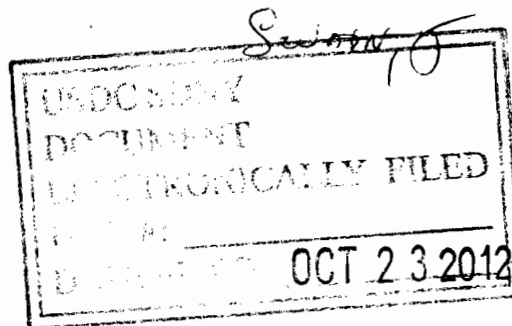


UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK



FRANCISCO SABATER;

Plaintiffs.

-against-

THE CITY OF NEW YORK, UMAR ALAM, JUAN
INOA, MICHAEL SCALLY and JORGE ORTIZ,
employees of the New York City Police Department,

Defendants.

**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL**

12 CV 3642 (LTS)

WHEREAS, plaintiff commenced this action by filing a complaint on or about May 8, 2012, and an amended complaint on or about September 21, 2012, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants City of New York, Police Officer Alam, Police Officer Scally and Sergeant Ortiz have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized his counsel to settle this matter on the terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. Defendants City of New York, Police Officer Alam, Police Officer Scally and Sergeant Ortiz hereby agree to pay FRANCISCO SABATER the sum of Twenty Thousand Dollars (\$20,000.00) in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants and to release the defendants, the City of New York and any present or former employees and agents of the City of New York or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiff's civil rights and any and all related state law claims, from the beginning of the world to the date of the General Release, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

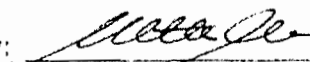
5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

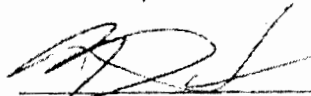
6. Plaintiff agrees to hold harmless the defendants regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Law Office of MATTHEW FLAMM, ~~ESQ.~~
Attorney for Plaintiff
26 Court St.
Brooklyn, New York 11242

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
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100 Church Street, Rm. 3-142
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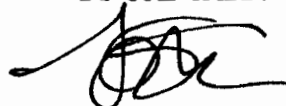
By: 
Matthew Flamm, Esq.
Attorney for Plaintiff

By: 
Brian Francolla
Senior Counsel

Dated: New York, New York
October 18, 2012

Dated: New York, New York
10/19, 2012

*The Clerk of Court is requested
to close this case.*
SO ORDERED:

 10/23/12

my
